

Prachi Sourav Das vs Sagarika Parida And Another Opp. ... on 19 May, 2026

Author: Mruganka Sekhar Sahoo

Bench: Mruganka Sekhar Sahoo

IN THE HIGH COURT OF ORISSA AT CUTTACK

W.P.(C) No.37595 of 2025

An application under Articles 226 and 227 of the Constitution
of India.

Prachi Sourav Das

... ..

Petitioner

-Versus-

Sagarika Parida and another ...

...

Opp. Parties

Advocates appeared in the case:

For Petitioner : Mrs. Sujata Jena, Sr. Advocate
with Ms. Sonali Panda, Advocate

For Opp. Parties : Mr. Prabin Das, Advocate

CORAM:

THE HON'BLE MR. JUSTICE MRUGANKA SEKHAR SAHOO

JUDGMENT

Date of hearing and judgment: 19th May, 2026

MRUGANKA SEKHAR SAHOO, J.

1. The matter is taken up in virtual court.

Heard Ms. Jena, learned Sr. Counsel along with Ms. Panda, learned counsel for the petitioner and Mr. Das, learned counsel for the opposite party.

2. The learned Sr. Counsel for the petitioner was heard at length. The matter was earlier heard and was adjourned by orders dated 12.01.2026 and 20.01.2026.

Today, the matter was heard again, it is submitted by the learned counsel for the petitioner that while awarding the amount of Rs.5,000/- by allowing the petition under Section 24 of the Hindu Marriage Act seeking pendente lite maintenance, the learned Family Court has not taken the relevant materials on record into consideration.

3. The application under Section 24 of Hindu Marriage Act seeking pendente lite maintenance was filed by the wife in the marriage in CP No.246 of 2020. The said CP was filed before the learned Judge, Family Court, Bhubaneswar by the petitioner-husband in the marriage under Section 13(1)(i-a) of the Hindu Marriage Act for dissolution of the marriage solemnized between the parties and grant of decree of divorce.

4. On 20.01.2026, the following order was passed:-

"3. Learned counsel for the petitioner seeks accommodation to obtain up-to-date instructions, as on being asked by the Court, it is submitted that the petitioner has not yet complied the order of directing payment of pendente lite maintenance under Section 24."

5. Thereafter, the matter has been adjourned at the instance of the petitioner on 03.02.2026 and 06.03.2026, 31.03.2026 and 27.04.2026. On 06.03.2026 the following order was passed:-

"The learned Senior Advocate for the petitioner refers to the order dated 03.02.2026 passed by this Court earlier and submits that affidavit on behalf of the petitioner has been filed. 2. Having gone through the said affidavit filed by the petitioner dated 25.02.2026, the order dated 03.02.2026 particularly paragraphs-1 and 2 are reiterated. The petitioner shall file affidavit indicating the details as specified in order dated 03.02.2026. 3. List in the week commencing 30.03.2026."

6. The learned Sr. Counsel has rested the case of the petitioner on the contention that the petitioner-husband has paid to the wife on several occasions being directed in several proceedings.

Learned Senior Counsel refers to the affidavit filed by the petitioner dated 27.04.2026. The affidavit does not indicate how much amount as maintenance pendente lite has been paid pursuant to the order passed by the learned Judge, Family Court dated 03.01.2025 under Section 24 of the Hindu Marriage Act w.e.f. the date of filing of the application i.e. 14.03.2024.

It is not disputed by the learned instructing counsel for the petitioner as well as the learned counsel for the opposite party that the some amount has been paid as directed by order dated 03.01.2025 in the pending C.P. From the date of application i.e. from 14.03.2024 is Rs.34,000/- as stated by the learned counsel Mr. Das for the opposite parties and Rs.40,000/- as stated by learned instructing counsel Ms. Panda for the petitioner.

7. Learned Sr. Counsel submits that the amount of Rs.6,000/- directed by the Court in the domestic violence case CMC No.10 of 2021 filed U/s.12 of the D.V. Act has not been accounted for while directing for payment of pendente lite maintenance U/s.24 of the Hindu Marriage Act.

8. Perusal of the order sheet of the learned Family Court in C.P. indicates that the learned Judge, Family Court has taken note of the payment of Rs.6,000/- as directed in CMC No.10 of 2021.

9. The legal issues pertaining to payment of pendente lite maintenance during pendency of a petition U/s.24 of the Hindu Marriage Act has been elaborately dealt with by the Hon'ble Supreme Court in Rajnesh vs. Neha¹. The Paragraphs (SCC Print) which are apposite and applied to adjudicate the present application are reproduced herein:

52. Some High Courts have taken the view that since each proceeding is distinct and independent of the other, maintenance granted in one proceeding cannot be adjusted or set off in the other. For instance, in *Ashok Singh Pal v. Manjulata* [Ashok Singh Pal v. Manjulata, 2008 SCC OnLine MP 18 : AIR 2008 MP 139] the Madhya Pradesh High Court held that the remedies available to an aggrieved person under Section 24 of the HMA is independent of Section 125 CrPC. In an application filed by the husband for adjustment of the amounts awarded in the two proceedings, it was held that the question as to whether adjustment is to (2021) 2 SCC 324:2020 INSC 631 be granted, is a matter of judicial discretion to be exercised by the court. There is nothing to suggest as a thumb rule which lays down as a mandatory requirement that adjustment or deduction of maintenance awarded under Section 125 CrPC must be off-set from the amount awarded under Section 24 of the HMA, or vice versa. A similar view was taken by another Single Judge of the Madhya Pradesh High Court in *Mohan Swaroop Chauhan v. Mohini* [Mohan Swaroop Chauhan v. Mohini, 2015 SCC OnLine MP 7427 :

(2016) 2 MP LJ 179] . Similarly, the Calcutta High Court in *Sujit Adhikari v. Tulika Adhikari* [Sujit Adhikari v. Tulika Adhikari, 2017 SCC OnLine Cal 15484 : (2018) 2 CHN 129] held that adjustment is not a rule. It was held that the quantum of maintenance determined by the Court under HMA is required to be added to the quantum of maintenance under Section 125 CrPC.

xxx xxx xxx II. Payment Of Interim Maintenance

62. The proviso to Section 24 of the HMA (inserted vide Act 49 of 2001 w.e.f. 24-9-2001), and the third proviso to Section 125 CrPC (inserted vide Act 50 of 2001 w.e.f. 24-9-2001) provide that the proceedings for interim maintenance, shall as far as possible, be disposed of within 60 days from the date of service of notice on the contesting spouse. Despite the statutory provisions granting a time-bound period for disposal of proceedings for interim maintenance, we find that applications remain pending for several years in most of the cases. The delays are caused by various factors, such as tremendous docket pressure on the Family Courts, repetitive

adjournments sought by parties, enormous time taken for completion of pleadings at the interim stage itself, etc. Pendency of applications for maintenance at the interim stage for several years defeats the very object of the legislation.

63. At present, the issue of interim maintenance is decided on the basis of pleadings, where some amount of guesswork or rough estimation takes place, so as to make a prima facie assessment of the amount to be awarded. It is often seen that both parties submit scanty material, do not disclose the correct details, and suppress vital information, which makes it difficult for the Family Courts to make an objective assessment for grant of interim maintenance. While there is a tendency on the part of the wife to exaggerate her needs, there is a corresponding tendency by the husband to conceal his actual income. It has therefore become necessary to lay down a procedure to streamline the proceedings, since a dependent wife, who has no other source of income, has to take recourse to borrowings from her parents/relatives during the interregnum to sustain herself and the minor children, till she begins receiving interim maintenance.

Xxx xxx xxx xxx III. Criteria for determining quantum of maintenance

77. The objective of granting interim/permanent alimony is to ensure that the dependent spouse is not reduced to destitution or vagrancy on account of the failure of the marriage, and not as a punishment to the other spouse. There is no straitjacket formula for fixing the quantum of maintenance to be awarded.

78. The factors which would weigh with the court inter alia are the status of the parties; reasonable needs of the wife and dependent children; whether the applicant is educated and professionally qualified; whether the applicant has any independent source of income; whether the income is sufficient to enable her to maintain the same standard of living as she was accustomed to in her matrimonial home; whether the applicant was employed prior to her marriage; whether she was working during the subsistence of the marriage; whether the wife was required to sacrifice her employment opportunities for nurturing the family, child rearing, and looking after adult members of the family; reasonable costs of litigation for a non-working wife. [Refer to Jasbir Kaur Sehgal v. District Judge, Dehradun, (1997) 7 SCC 7; Refer to Vinny Parmvir Parmar v. Parmvir Parmar, (2011) 13 SCC 112 : (2012) 3 SCC (Civ) 290]

79. In Manish Jain v. Akanksha Jain [Manish Jain v. Akanksha Jain, (2017) 15 SCC 801 : (2018) 2 SCC (Civ) 712] this Court held that the financial position of the parents of the applicant wife, would not be material while determining the quantum of maintenance. An order of interim maintenance is conditional on the circumstance that the wife or husband who makes a claim has no independent income, sufficient for her or his support. It is no answer to a claim of maintenance that the wife is educated and could support herself. The court must take into consideration the status of the parties and the capacity of the spouse to pay for her or his support. Maintenance is dependent upon factual situations; the court should mould the claim for maintenance based on various factors brought before it.

80. On the other hand, the financial capacity of the husband, his actual income, reasonable expenses for his own maintenance, and dependent family members whom he is obliged to maintain under the law, liabilities if any, would be required to be taken into consideration, to arrive at the appropriate quantum of maintenance to be paid. The court must have due regard to the standard of living of the husband, as well as the spiralling inflation rates and high costs of living. The plea of the husband that he does not possess any source of income ipso facto does not absolve him of his moral duty to maintain his wife if he is able-bodied and has educational qualifications. [Reema Salkan v. Sumer Singh Salkan, (2019) 12 SCC 303 : (2018) 5 SCC (Civ) 596 :

(2019) 4 SCC (Cri) 339]

81. A careful and just balance must be drawn between all relevant factors. The test for determination of maintenance in matrimonial disputes depends on the financial status of the respondent, and the standard of living that the applicant was accustomed to in her matrimonial home. [Chaturbhuj v. Sita Bai, (2008) 2 SCC 316 : (2008) 1 SCC (Civ) 547 : (2008) 1 SCC (Cri) 356] The maintenance amount awarded must be reasonable and realistic, and avoid either of the two extremes i.e. maintenance awarded to the wife should neither be so extravagant which becomes oppressive and unbearable for the respondent, nor should it be so meagre that it drives the wife to penury. The sufficiency of the quantum has to be adjudged so that the wife is able to maintain herself with reasonable comfort.

82. Section 23 of the HAMA provides statutory guidance with respect to the criteria for determining the quantum of maintenance. Sub-section (2) of Section 23 of the HAMA provides the following factors which may be taken into consideration : (i) position and status of the parties, (ii) reasonable wants of the claimant, (iii) if the petitioner/claimant is living separately, the justification for the same, (iv) value of the claimant's property and any income derived from such property, (v) income from claimant's own earning or from any other source.

83. Section 20(2) of the DV Act provides that the monetary relief granted to the aggrieved woman and/or the children must be adequate, fair, reasonable, and consistent with the standard of living to which the aggrieved woman was accustomed to in her matrimonial home.

84. The Delhi High Court in Bharat Hegde v. Saroj Hegde [Bharat Hegde v. Saroj Hegde, 2007 SCC OnLine Del 622 : (2007) 140 DLT 16] laid down the following factors to be considered for determining maintenance : (SCC OnLine Del para 8) "1. Status of the parties.

2. Reasonable wants of the claimant.

3. The independent income and property of the claimant.

4. The number of persons, the non-applicant has to maintain.

5. The amount should aid the applicant to live in a similar lifestyle as he/she enjoyed in the matrimonial home.

6. Non-applicant's liabilities, if any.
7. Provisions for food, clothing, shelter, education, medical attendance and treatment, etc. of the applicant.
8. Payment capacity of the non-applicant.
9. Some guesswork is not ruled out while estimating the income of the non-applicant when all the sources or correct sources are not disclosed.
10. The non-applicant to defray the cost of litigation.
11. The amount awarded under Section 125 CrPC is adjustable against the amount awarded under Section 24 of the Act."
85. Apart from the aforesaid factors enumerated hereinabove, certain additional factors would also be relevant for determining the quantum of maintenance payable.

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(c). Where wife is earning some income

90. The courts have held that if the wife is earning, it cannot operate as a bar from being awarded maintenance by the husband. The courts have provided guidance on this issue in the following judgments:

90.1. In *Shailja v. Khobbanna* [*Shailja v. Khobbanna*, (2018) 12 SCC 199 : (2018) 5 SCC (Civ) 308; See also the decision of the Karnataka High Court in *P. Suresh v. S. Deepa*, 2016 SCC OnLine Kar 8848 : 2016 Cri LJ 4794 (Kar)] , this Court held that merely because the wife is capable of earning, it would not be a sufficient ground to reduce the maintenance awarded by the Family Court. The court has to determine whether the income of the wife is sufficient to enable her to maintain herself, in accordance with the lifestyle of her husband in the matrimonial home. [*Chaturbhuj v. Sita Bai*, (2008) 2 SCC 316 : (2008) 1 SCC (Civ) 547 : (2008) 1 SCC (Cri) 356] Sustenance does not mean, and cannot be allowed to mean mere survival. [*Vipul Lakhanpal v. Pooja Sharma*, 2015 SCC OnLine HP 1252 : 2015 Cri LJ 3451] 90.2. In *Sunita Kachwaha v. Anil Kachwaha* [*Sunita Kachwaha v. Anil Kachwaha*, (2014) 16 SCC 715 : (2015) 3 SCC (Civ) 753 : (2015) 3 SCC (Cri) 589] the wife had a postgraduate degree, and was employed as a teacher in Jabalpur. The husband raised a contention that since the wife had sufficient income, she would not require financial assistance from the husband. The Supreme Court repelled this contention, and held that merely because the wife was earning some income, it could not be a ground to reject her claim for maintenance.

90.3. The Bombay High Court in Sanjay Damodar Kale v. Kalyani Sanjay Kale [Sanjay Damodar Kale v. Kalyani Sanjay Kale, 2020 SCC OnLine Bom 694] while relying upon the judgment in Sunita Kachwaha [Sunita Kachwaha v. Anil Kachwaha, (2014) 16 SCC 715 : (2015) 3 SCC (Civ) 753 : (2015) 3 SCC (Cri) 589] , held that neither the mere potential to earn, nor the actual earning of the wife, howsoever meagre, is sufficient to deny the claim of maintenance.

90.4. An able-bodied husband must be presumed to be capable of earning sufficient money to maintain his wife and children, and cannot contend that he is not in a position to earn sufficiently to maintain his family, as held by the Delhi High Court in Chander Parkash v. Shila Rani [Chander Parkash v. Shila Rani, 1968 SCC OnLine Del 52 : AIR 1968 Del 174] . The onus is on the husband to establish with necessary material that there are sufficient grounds to show that he is unable to maintain the family, and discharge his legal obligations for reasons beyond his control. If the husband does not disclose the exact amount of his income, an adverse inference may be drawn by the court. 90.5. This Court in Shamima Farooqui v. Shahid Khan [Shamima Farooqui v. Shahid Khan, (2015) 5 SCC 705 : (2015) 3 SCC (Civ) 274 : (2015) 2 SCC (Cri) 785] cited the judgment in Chander Parkash [Chander Parkash v. Shila Rani, 1968 SCC OnLine Del 52 : AIR 1968 Del 174] with approval, and held that the obligation of the husband to provide maintenance stands on a higher pedestal than the wife.

(d) Maintenance of minor children

91. The living expenses of the child would include expenses for food, clothing, residence, medical expenses, education of children. Extra coaching classes or any other vocational training courses to complement the basic education must be factored in, while awarding child support. Albeit, it should be a reasonable amount to be awarded for extracurricular/coaching classes, and not an overly extravagant amount which may be claimed.

92. Education expenses of the children must be normally borne by the father. If the wife is working and earning sufficiently, the expenses may be shared proportionately between the parties.

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VI. Final directions

127. In view of the foregoing discussion as contained in Part B -- I to V of this judgment, we deem it appropriate to pass the following directions in exercise of our powers under Article 142 of the Constitution of India.

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(a) Date from which maintenance is to be awarded

131. We make it clear that maintenance in all cases will be awarded from the date of filing the application for maintenance, as held in Part B -- IV above.

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(e) Enforcement/Execution of orders of maintenance

134. A copy of this judgment be communicated by the Secretary General of this Court, to the Registrars of all High Courts, who would in turn circulate it to all the District Courts in the States. It shall be displayed on the website of all District Courts/Family Courts/Courts of Judicial Magistrates for awareness and implementation.

[Underlined to supply emphasis]

10. It is submitted by Mr. Das the learned counsel for the opposite party that during pendency of the C.P. No.246 of 2020, despite the direction of the Court to pay pendent lite maintenance U/s.24 of the Hindu Marriage Act, the amount is not paid in one pretext or the other. It is submitted that at para-6 of the application, it has been stated wrongly that the opposite party-wife has been reinstated as Sub- Inspector of Police.

11. In considered view of this Court, the amount of Rs.6,000/- directed by the learned Judge, Family Court towards maintenance pendent lite is just and proper as the learned Court has taken note of the amounts already paid by the petitioner-herein-husband to the opposite party-wife. The minor daughter born from the wedlock stays with the mother-present opposite party and has to be maintained. The amount of Rs.6,000/- cannot be held to be a fortune showered on the mother child that require interference.

12. Regarding scope of interference of this Court in exercise of jurisdiction under Article 227 of the Constitution of India, the Hon'ble Apex Court in it's recent decision has considered the issue in Nandi Infrastructure Corridor Enterprises Ltd. & another vs. B. Gurappa Naidu and others². The Apex Court in the said judgment at paragraph- 27 summarized the points that arose for determination:

"i. Whether the High Court exceeded its jurisdiction conferred upon under Article 227 of the Constitution of India ?

ii. Whether the High Court was justified in interfering with the findings recorded by the Executing Court ?"

13. The points have been answered in the subsequent paragraphs 30, 31, 32, 33 and 34, which are reproduced herein (INSC print):

"30. Before advertng to the factual matrix, it would be apposite to examine whether the High Court exceeded the jurisdiction vested in it under Article 227 of the Constitution of India?

31. The scope and ambit of the power of the High Court under Article 227 of the Constitution has been the subject matter of consideration before this Court in several judgments, and the law governing the exercise of such power now stands well settled. In exercise of its supervisory jurisdiction, the High Court cannot act as an appellate court, nor can it sit in appeal over the correctness of the orders passed by courts and tribunals over which it exercises the power of superintendence under Article 227.

32. This court in *Shalini Shyam Shetty and Another v. Rajendra Shankar Patil*: (2010) 8 SCC 329, has held:

"35. Nasirullah Beg J. of the Allahabad High Court in a very well-considered judgment 2026 INSC 434 rendered in the case of *Jodhey vs. State*, reported in AIR 1952 All 788, discussed the provisions of Section 15 of the Indian High Courts Act of 1861, Section 107 of the Government of India Act 1915 and Section 224 of the Government of India Act 1935 and compared them with almost similar provisions of Article 227 of the Constitution. The learned judge considered the power of the High Court under Article 227 to be plenary and unfettered but at the same time, in paragraph 15 at page 792 of the report, the learned judge held that High Court should be cautious in its exercise. It was made clear, and rightly so, that the power of superintendence is not to be exercised unless there has been an (a) unwarranted assumption of jurisdiction, not vested in Court or tribunal, or (b) gross abuse of jurisdiction or (c) an unjustifiable refusal to exercise jurisdiction vested in Courts or tribunals. The learned judge clarified if only there is a flagrant abuse of the elementary principles of justice or a manifest error of law patent on the face of the record or an outrageous miscarriage of justice, power of superintendence can be exercised. This is a discretionary power to be exercised by Court and cannot be claimed as a matter or right by a party.

40. Same principles have been followed by this Court in the case of *Mani Nariman Daruwala @ Bharucha (deceased) through Lrs. & others vs. Phiroz N. Bhatena and others etc.* reported in (1991) 3 SCC 141, wherein it has been held that in exercise of its jurisdiction under Article 227, the High Court can set aside or reverse finding of an inferior Court or tribunal only in a case where there is no evidence or where no reasonable person could possibly have come to the conclusion which the Court or tribunal has come to. This Court made it clear that except to this 'limited extent' the High Court has no jurisdiction to interfere with the findings of fact (see para 18, page 149-150). In coming to the above finding, this Court relied on its previous decision rendered in the case of *Chandavarkar Sita Ratna Rao vs. Ashalata S. Guram* reported in (1986) 4 SCC 447. The decision in *Chandavarkar* (supra) is based on the principle of the Constitution Bench judgments in *Waryam Singh v. Amanath and Another*, reported in AIR 1954 SC 215 and *Nagendra Nath Bora & Another vs The Commissioner of Hills Division and others*, reported in AIR 1958 SC 398 discussed above."

33. This court in the case of *Estralla Rubber v. Dass Estate (P) Ltd.*: (2001) 8 SCC 97, has held that the power of the High Court in interfering with the order of the Court or Tribunal, would be restricted to cases of serious dereliction of duty and flagrant violation of fundamental principles of law or justice. It has been further held:

"6. The scope and ambit of exercise of power and jurisdiction by a High Court under Article 227 of the Constitution of India is examined and explained in number of decisions of this Court. The exercise of power under this Article involves a duty on the High Court to keep inferior courts and tribunals within the bounds of their authority and to see that they do duty expected or required by them in a legal manner. The High Court is not vested with any unlimited prerogative to correct all kinds of hardship or wrong decisions made within the limits of the jurisdiction of the courts subordinate or tribunals. Exercise of this power and interfering with the orders of the courts or tribunal is restricted to cases of serious dereliction of duty and flagrant violation of fundamental principles of law or justice, where if High Court does not interfere, a grave injustice remains uncorrected. It is also well settled that the High Court while acting under this Article cannot exercise its power as an appellate court or substitute its own judgment in place of that of the subordinate court to correct an error, which is not apparent on the face of the record. The High Court can set aside or ignore the findings of facts of inferior court or tribunal, if there is no evidence at all to justify or the finding is so perverse, that no reasonable person can possibly come to such a conclusion, which the court or Tribunal has come to."

34. This Court in a recent judgment of *Garment Craft v. Prakash Chand Goel*: (2022) 4 SCC 181, had an occasion to again deal with the exercise of Jurisdiction under Article 227 of the Constitution of India and held that, High Court exercising supervisory jurisdiction would not act as a Court of First Appeal. It was also held:

"15. Having heard the counsel for the parties, we are clearly of the view that the impugned order is contrary to law and cannot be sustained for several reasons, but primarily for deviation from the limited jurisdiction exercised by the High Court under Article 227 of the Constitution of India. The High Court exercising supervisory jurisdiction does not act as a court of first appeal to reappreciate, reweigh the evidence or facts upon which the determination under challenge is based. Supervisory jurisdiction is not to correct every error of fact or even a legal flaw when the final finding is justified or can be supported. The High Court is not to substitute its own decision on facts and conclusion, for that of the inferior court or tribunal. The jurisdiction exercised is in the nature of correctional jurisdiction to set right grave dereliction of duty or flagrant abuse, violation of fundamental principles of law or justice. The power under Article 227 is exercised sparingly in appropriate cases, like when there is no evidence at all to justify, or the finding is so perverse that no reasonable person can possibly come to such a conclusion that the court or tribunal has come to. It is axiomatic that such discretionary relief must be exercised to ensure there is no miscarriage of justice."

(Emphasis supplied)

14. The Apex Court has summarized the principles at paragraph-35, which is reproduced herein:

"35. In short, the principles laid down in the above matters is as follows:

a) The power of superintendence under Article 227 is not to be exercised unless there has been an (a) unwarranted assumption of jurisdiction, not vested in Court or tribunal, or (b) gross abuse of jurisdiction or (c) an unjustifiable refusal to exercise jurisdiction vested in Courts or tribunals.

b) It is also well settled that the High Court while acting under this Article cannot exercise its power as an appellate court or substitute its own judgment in place of that of the subordinate court to correct an error, which is not apparent on the face of the record.

c) The High Court exercising supervisory jurisdiction does not act as a court of first appeal to reappreciate, reweigh the evidence or facts upon which the determination under challenge is based.

Supervisory jurisdiction is not to correct every error of fact or even a legal flaw when the final finding is justified or can be supported. The High Court is not to substitute its own decision on facts and conclusion, for that of the inferior court or tribunal."

15. After discussing the facts of the case in Nandi Infrastructure (supra), the Hon'ble Supreme Court has held that the High Court exceeded the jurisdiction vested in it under Article 227 of the Constitution of India. The Hon'ble Court has further summed up the applicable principle, which are reproduced herein :-

"36.1. Firstly, the power of superintendence under Article 227 of the Constitution can be exercised where there is an unwarranted assumption of jurisdiction by a court not vested with such jurisdiction, or in cases of gross abuse of jurisdiction.

36.2. Secondly, the power of superintendence may be invoked where there is an unjustifiable refusal to exercise jurisdiction vested in a court. 36.3. Thirdly, the High Court, while exercising jurisdiction under Article 227 of the Constitution, could not have acted as an appellate court or substitute its own judgment for that of the subordinate court to correct an error which was not apparent on the face of the record. 36.3.1. While exercising its jurisdiction under Article 227 of the Constitution, the High Court had a limited scope of interference with the order passed by the Executing Court. What the High Court has done in the present matter is precisely what may be characterised as acting in the capacity of an Appellate Court, which is impermissible in the exercise of supervisory jurisdiction under Article

227.

36.3.4. Fourthly, at the very least, the interpretation, adopted by the Executing Court constituted a plausible and reasonable view. In such circumstances, the High Court could not, in exercise of its supervisory jurisdiction under Article 227 of the Constitution, supplant that view with another interpretation, merely because such an alternative view was also possible. By exercising jurisdiction under Article 227 solely to demonstrate that another view was possible, the High Court, in effect, acted as an appellate court, which is impermissible in law."

16. Applying the principles of law elaborated in Nandi Infrastructure (supra) to the case at hand it has to be held that the judgment of the learned Judge, Family Court awarding maintenance to the opposite party-wife and daughter born from wedlock pendent lite @ Rs.6,000/- under section 24 of the Hindu Marriage Act during pendency of the petition filed by the husband seeking divorce cannot be re-evaluated by this Court as an appellate Court to interfere with it, as this Court is exercising the power of superintendence and scope of interference is very limited and discretionary. By granting maintenance pendentelite @ Rs.6,000/- per month, it cannot be held that the learned Judge, Family Court has violated the fundamental principles of law or justice;

17. This Court cannot act as a Court of appeal to reappreciate or reweigh the evidence and facts upon which the determination by the learned Judge, Family Court is based as the final finding is found and held to be justified and is supported by the evidence on record.

As has been laid by the Hon'ble Apex Court in several decisions those have been highlighted, followed and reiterated in Nandi Infrastructure (supra), this Court cannot substitute its view on facts and conclusion of the learned Family Court as there is no violation of fundamental principles of law or justice, as there is evidence to justify the conclusions of the learned Family Court. It cannot be held that the order of the learned Judge, Family Court is so perverse that no reasonable person can possibly come to such a conclusion.

18. In view of the above discussions, the writ petition being devoid of merit, fails and is dismissed.

Now costs, reluctantly made easy.

(Mruganka Sekhar Sahoo) Judge Orissa High Court, Cuttack The 19th May, 2026/Radha